

HOUSE No. 880

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to city and town clerks mailing of early voting ballots.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/15/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>6/16/2025</i>

HOUSE No. 880

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 880) of Tommy Vitolo relative to mailing of early voting ballots by city and town clerks. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 730 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to city and town clerks mailing of early voting ballots.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph (10) of subsection (a) of section 25B of chapter 54 of the General
2 Laws, as appearing in section 10 of chapter 92 of the acts of 2022, is hereby amended by
3 inserting after the word “available”, the following words:- , but not mailed more than 30 calendar
4 days before the date of the preliminary, primary or election that the ballot pertains to. Early
5 voting ballots shall not be picked up in person from the appropriate local election official more
6 than 30 calendar days before the date of the preliminary, primary or election.

7 SECTION 2. Section 91B of said chapter 54, as amended by section 17 of said chapter
8 92, is hereby further amended by striking out subsections (a) and (b) and inserting in place
9 thereof the following subsections:-

10 (a) Except as required by subsections (b) and (c), the ballot and accompanying
11 papers shall be mailed postage prepaid and with return postage guaranteed or, if the voter so
12 requests, delivered when called for at the office of the clerk, but not mailed more than 30
13 calendar days before the date of the preliminary, primary or election that the ballot pertains to.
14 No ballot shall be mailed to a designated health care facility within the city or town where the
15 voter is registered.

16 (b) To a voter who is a patient or resident at a designated health care facility, the ballot
17 and accompanying papers shall be delivered, in person, by a registrar, assistant registrar or
18 absent registration officer, at the designated address, but not delivered more than 30 calendar
19 days before the date of the preliminary, primary or election that the ballot pertains to. For the
20 purposes of this section, a “designated health care facility” shall mean a health care facility as
21 defined in section 25B of chapter 111, within the city or town, which has been designated for the
22 purpose of supervised absentee voting, in writing, and filed with the city or town clerk, not later
23 than 28 days before a primary or election, by any 2 registrars or election commissioners.